

Court No. - 21

Case :- WRIT - C No. - 4606 of 2014

Petitioner :- Chandra Prakash Gupta

Respondent :- State Of U.P. Thru Secy. And 3 Others

Counsel for Petitioner :- Anurag Singh

Counsel for Respondent :- C.S.C.,Dr. S.K. Yadav

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Anil Kumar Agarwal,J.

Heard learned counsel for the petitioner, who has prayed for a mandamus directing the respondents to give a domestic electricity connection, which is a new connection in respect of the premises, which the petitioner states to have purchased in an auction from the State Bank of India under the Securitisation and Reconstruction of Financial Assets and Enforcement of Security Interest Act, 2002. The contention of the petitioner is that since he is an auction purchaser he is not liable to clear any erstwhile dues in respect of the same premises and that too even in a different name, in as much as, it is the liability of the previous owner and not of the petitioner. The petitioner has relied upon the judgment of three Judges in the case of **Ahmedabad Electricity Co. Ltd. Vs. Gujarat Inns Pvt. Ltd. and others** reported in **AIR 2004 SC 2171** wherein, in the absence of any statutory provision, it was held that if an auction purchaser applies for a fresh connection then no liability with regard to the previous dues of the erstwhile owner can be fixed upon him and therefore, a fresh connection cannot be denied.

We have perused the ratio of the said decision and we find that in the Electricity Supply Code, 2005, a statutory provision has now been introduced under Clause 4.1 of Chapter 4 of the Code, which is quoted below:

"4.1 Licensee's Obligation to Supply.- The Licensee shall on an application by the owner or occupier of any premises, located in his area of supply, give supply of electricity to such premises within the one month after receipt of completed application showing payments of necessary charges and other compliances.

Provided where such supply requires extension of distribution mains, or commissioning of new sub-stations, the distribution Licensee shall supply the electricity to such premises immediately after such extension or commissioning or within such period as specified by the Commission in clause 4.8;

Provided also in case of application for supply from a village or hamlet or area wherein no provision for supply of electricity exists, the Commission shall extend the time period for provision of supply appropriately on a case-to-case basis;

Provided further that in case of arrears of electricity dues in respect of old consumers/ premises where ownership has changed, the new connection shall be released to the new owners only after submission of No-Dues Certificate as provided in clause 4.3(f);

And provided that if there are arrears of electricity dues on a premises, a new connection shall not be released to a new applicant/ or the old consumer on the same premises. The connection shall also not be released if-

(i) The applicant (being an individual) is an associate or relative (as defined in Section 2 and 6 respectively of the Companies Act, 1956) of the defaulting consumer,

(ii) Or where the applicant being a company or body corporate or association or body of individuals, whether incorporated or not, or artificial juridical person, is controlled, or having controlling interest in the defaulting consumer, provided, the Licensee shall not refuse electric connection on this ground, unless an opportunity to represent his case is provided to the applicant and a reasoned order is passed by an officer as designated by the licensee."

Having perused the same we are of the opinion that since in the instant case there is already a clear statutory provision to that effect as such a fresh electricity connection can only be granted if No Dues Certificate is given by the person, who is seeking to have fresh electricity connection. Consequently, the ratio of the aforesaid decision cannot come to the aid of the petitioner in view of the aforesaid statutory provision in the Electricity Supply Code, 2005 that has been promulgated much after 2004. Consequently, if the petitioner applies for a fresh electricity connection complying with the aforesaid condition, it shall be open to the respondents to consider the same in accordance with law.

With the aforesaid direction the writ petition is disposed of.

Order Date :- 23.1.2014

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